



POLICE DEPARTMENT

June 1, 2026

-----X
In the Matter of the Charges and Specifications :
- against - :
Police Officer Benjamin Bayan :
Tax Registry No. 968270 :
49th Precinct Detective Squad :
-----X

Case No.
C-034794

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

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Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Benjamin Bayan, on or about February 20, 2024, at approximately 1555 hours, while assigned to the 49 Precinct and on duty, at St. Lucy's Church Goods Shop (located at 2501 Bronxwood Avenue), Bronx County, wrongfully used force, in that Police Officer Bayan used a chokehold against Complainant.¹

P.G. 221-01, Page 3, Prohibition 2(b)

USE OF CHOKEHOLD

2. Police Officer Benjamin Bayan, on or about February 20, 2024, at approximately 1555 hours, while assigned to the 49 Precinct and on duty, at St. Lucy's Church Goods Shop (located at 2501 Bronxwood Avenue), Bronx County, wrongfully used force, in that Police Officer Bayan restricted Complainant's breathing without police necessity.

P.G. 221-02, Page 3, Prohibition 11(a)

REDUCING THE
SUBJECT'S ABILITY TO
BREATHE

P.G. 221-02, Page 3, Paragraph 12

DUTY TO CONTINUALLY
ASSESS AND ADJUST
THE USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 17, 2026.

Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The CCRB called no witnesses and relied upon body-worn camera evidence and Complainant's hearsay statement. Respondent also offered body-worn camera evidence and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of the charged misconduct.

¹ The complainant's identity is known to the Tribunal.

ANALYSIS

1. Introduction

This case presents the competing challenges of: (1) restraining an uncooperative individual, whose physical size and resistive actions both prolonged the struggle to place handcuffs on him and required the cooperative efforts of numerous police officers; and (2) effectuating that restraint in a manner consistent with the Patrol Guide and New York law.

Based upon the totality of the evidence, I find that Respondent: (1) did not use a chokehold against Complainant, and (2) did not restrict Complainant's breathing.

2. Trial Evidence

The following is a summary of the relevant evidence presented at trial.

Complainant's Statement

On March 26, 2024, CCRB interviewed Complainant by telephone regarding an allegation of misconduct that had occurred on February 20, 2024. Complainant stated that on that date, approximately 1600 hours, he was in St. Lucy's Church Goods Shop perusing the merchandise to make a purchase. Complainant recalled asking the employees about prices and potential deals in a conversational tone. He estimated that he was in the store for "no longer than five to ten minutes" when the employees indicated to him that they would call the police if he did not leave because they felt uncomfortable based on his demeanor. According to Complainant, he "was in disbelief that they would want to even escalate it there" (CCRB Ex. 3B at 4-6).

Complainant detailed "three to four" uniformed officers, one male and a few females, entering the shop. He stated that he was "in the center" of the shop and the officers "started positioning themselves around me." Complainant remembered "stiffening" his arms and holding them up around his shoulders while asserting, "I am not resisting" as "things got violent." He

indicated that all the officers grabbed various parts of his body, “took [him] down, and proceeded to beat [him] up” (*Id.* at 9-12, 18-19).

Complainant stated that the male officer (Respondent) grabbed him from the back as he was standing, then placed his elbow “around [Complainant’s] neck;” he was unable to recall whether Respondent applied any pressure to his neck with his elbow. When asked if he had difficulty breathing due to Respondent’s arm positioned around his neck, Complainant replied, “I do remember it being hard to breathe, but I wasn’t standing up for very long.” He also disclosed that he had difficulty breathing after Respondent removed his arm from Complainant’s neck because of “the constant violent blows being dealt to [him] while [he] was on the ground” (*Id.* at 13-15).

Complainant recounted that the officers pushed and pulled his arms and body, resulting in him landing face down on the ground. He approximated that for “30 seconds” the officers hit his head “around ten” times, as well as the back and side of his neck “more than ten” times, while he was on the ground. As a result, Complainant covered his face with his hands and arms to protect himself. When asked whether he lost consciousness, Complainant responded, “I would say so.” Complainant claimed that his next memory was talking to Emergency Medical Technicians at the scene. He recounted remaining overnight at Jacobi Hospital, where he was treated for a broken nose, which Complainant presumed was caused by the police encounter. He stated that he “might have one or two” photographs of his injuries and agreed to sign medical release forms (*Id.* at 16-23, 27-28).

Complainant stated further that his shoulders were covered in scars from taser prongs and that he could not open his eyes after the incident, as his body was covered in pepper spray. He could not recall when police officers used a taser or pepper spray, or which officer(s) did so.

When asked if he was under the influence of an intoxicant, Complainant replied, “Not that I can recall.” He further stated that he had a cocktail “an hour” or “a couple hours or so” before the incident, but he “felt pretty normal” and it was “nothing that would impede [his] judgment.”

Complainant described himself as “5’10” and “[a]bout 260, 270” pounds” (*Id.* at 23-25, 28-30).

Body-Worn Camera Video Evidence

This Tribunal has reviewed the entirety of the body-worn camera evidence. While all the footage is informative, the video recordings are duplicative in many respects. Based upon the Tribunal’s review, Police Officer Albulena Kukaj’s body-worn camera recording (Resp. Ex. A), Respondent’s body-worn camera recording (CCRB Ex. 1), and Police Officer Maria Mella’s body-worn camera recording (Resp. Ex. B), best capture the interactions that are material to its determination.

The following is a summary of the relevant portion of Police Officer Kukaj’s body-worn camera recording, in evidence as Respondent’s Exhibit A:

- 00:51- 01:34** PO Kukaj exits the driver’s seat of a marked RMP and crosses in front of the vehicle. PO Yvette Juste exits the passenger seat and walks ahead of PO Kukaj. Both officers enter the courtyard of St. Lucy’s Church, where a man points in the direction of the church entrance. The police officers enter the church and walk toward the gift shop. As they approach a stairway leading to the gift shop, PO Kukaj opens the door to the shop. Complainant walks down the stairs with his hands up and his palms facing outward.
- 01:35-01:47** PO Kukaj asks, “What’s going on?” Complainant responds, “Uh, we’re just working on a deal” and gestures to his left with his right hand. An off-screen voice states, “No, we’re not.” As Complainant walks up the stairs, PO Kukaj gestures behind her with her right hand and replies, “So, you want him out?” The voice responds, “I’ve asked him thirty-” PO Kukaj waves her hand toward Complainant, in a beckoning motion, and interjects, “Sir, sir, sir, sir, you need to step out.” Complainant turns around, facing her, and replies, “No, I don’t.” PO Kukaj walks up the stairs and retorts, “Yes, you do.”
- 01:48-02:05** PO Kukaj orders him to step out, again, gesturing behind herself. She continues, “They want you out, so step out.” Complainant, holding a small

object in between left index finger and thumb, responds, "No, no, no. We're working a deal." A store employee crosses his arms and states, "I asked him ten times-" PO Kukaj speaks over him, indicating, "Okay, he wants nothing to do with you. So, get out." Complainant states, "It's his choice." The store employee, now off-screen, states, "He doesn't make sense. He's talking complete gibberish . . ." As Complainant tucks his left hand under his vest and beneath his right arm, PO Kukaj says, "Sir, get out." The store employee continues, "You were ran out of the store. Everything is on camera. We got the whole thing on camera." PO Kukaj steps toward Complainant, points in his direction, and asks, "What do you have- What are you touching over here?" PO Kukaj steps toward Complainant as he steps to his left and looks down to his right.

02:06-02:19

PO Kukaj clarifies, "In your hand. What's in your hand?" Complainant holds a small black item in his left hand, as he raises both hands with palms facing outward, and steps back. The store employee states, "No, he's got his charger in his hand. He's got a charger in his hand." Complainant tosses the object toward PO Kukaj, leans slightly to his right, and states, "That's mine, by the way. I threw it because you're acting weird." PO Kukaj retorts, "You're acting weird." Complainant then retrieves the object. PO Juste interjects, "Alright, sir. Can you just please come out?" Complainant states, "One dollar," as he crosses his right arm over his midsection and covers his mouth with his left fist.

02:20-02:32

PO Juste utters, "...What?" PO Kukaj announces, "4-9 Charlie [inaudible]." The store employee off-screen voices, "He's not making any sense." Complainant points off-screen and counters, "I speak your language better than you do." He then points in PO Juste's direction and states, "To you." As he speaks, PO Kukaj states, "Can I get a bus to our location and one unit." Complainant walks toward PO Juste and indicates, "I can speak to her without even looking at her. That's how good I speak her language."

02:33-02:50

As PO Juste replies, "Okay, but, come on, 'cause they don't want you here," PO Kukaj says, "Yeah, we all speak the same language." Complainant responds, "No, we don't." PO Kukaj extends her right arm in front of Complainant as he walks away from the staircase. PO Kukaj raises her voice, stating, "Okay. Okay. They don't want you in here, so stop continuing to walk." Complainant raises his hands above his head with his palms facing outward, backs into a corner, and replies, "Woah. Woah." PO Kukaj continues, "Step this way! Step this way!" A second store employee can be seen standing to the main employee's right. PO Kukaj gestures in the direction of the staircase. Complainant looks in PO Juste's direction and reiterates, "I speak your language better than she does. And she's your partner." PO Kukaj points in the direction of the staircase and repeats, "Step this way." PO Juste gestures behind herself and states, "You gotta come on, bro, 'cause they don't want you in here."

- 02:51-03:15** Complainant indicates, "I told them one dollar." The main employee comments, "He's not even making any sense." PO Juste repeats, "You gotta come out." Complainant points in the main employee's direction and reiterates, "I speak your language to her," and points in PO Juste's direction. As he points in PO Kukaj's direction, he concludes, "Better than you do." Complainant states, "E-D-K. Now y'all saying gang letters. And I'm the problem." PO Kukaj gestures in the direction of the staircase and replies, "Sir, you're going to have to go to EMS if you don't step out." Complainant asks, "How many times have you been to EMS?" PO Kukaj responds, "Come on, let's go." As she turns toward Complainant, she instructs, "Don't- don't get close to me." Complainant backs up, stating "Please don't touch me." PO Kukaj continues, "Don't get close to me, because you and me gon' have a real big problem." Complainant retorts, "No, we're not." PO Kukaj concludes, "So, I need you to step out."
- 03:16-03:37** Complainant responds, "You're doing a great job." PO Kukaj replies, "Thank you, I know. I need you to step out." Complainant states, "You actually don't know. That's why you called for backup. You don't understand how much you're valued here." PO Kukaj states, "I need you to step out, Sir. Okay, I need you to step out." Complainant responds, "One dollar." PO Kukaj sighs while stating, "Okay, I need you to step out." Complainant states, "I paid him forty dollars. He gave me back eight." PO Kukaj asks the main employee, "Is that what-?" The main employee shakes his head negatively. PO Kukaj concludes, "He's literally just talking out of-." The main employee nods and affirms, "Yes. He's been making no sense."
- 03:38-03:57** PO Kukaj asks, "Sir, do you know what you're doing here?" Complainant responds in the affirmative. PO Kukaj further inquires, "What is the reason that you're here?" Complainant mutters, "This b***h is-" PO Kukaj asks, "This what?" Complainant says, "B-I-" PO Kukaj interjects, "Your mother is what- what you just said." Complainant retorts, "I don't like her either." PO Kukaj responds, "Okay. I wouldn't like you either if I was your mother, to be honest." Complainant replies, "I'm sorry you feel that way. That's the craziest statement I've heard all day."
- 03:58-04:21** Complainant continues, "This b***h said if I had a son I'd hate him." PO Kukaj steps toward Complainant and grabs his vest near his right arm. Complainant raises both of his hands above his head. PO Kukaj repeats, "I need you to step out," as PO Juste states, "Listen. Listen." PO Juste also grabs Complainant's vest near his left arm. Complainant presses his back against a wall behind him and indicates, "You can have the jacket." PO Juste states, "Listen, we don't want to put hands on you, but-" Complainant raises his voice, interjecting, "You're already f**king touching me." As PO Juste instructs, "Let's go," PO Kukaj says, "So, step out." Complainant responds in the negative and remarks, "That's crazy, and you support this."

- 04:22-04:48** PO Kukaj relays over her radio, "We're gonna need a bus and an additional." Complainant announces, "I don't need it. I can walk home. I can introduce you to my mom. She'd probably rather talk to you than me." PO Kukaj retorts, "I can see why. Yeah, I can see why." Complainant states, "That's your choice. If you hate yourself, that's your problem." PO Kukaj replies, "I don't hate myself. I think you hate yourself." Complainant responds, "No, I'm good," and grabs two items within arm's reach. PO Kukaj tells him the items do not belong to him and orders him to release the merchandise. Complainant agrees that the merchandise does not belong to him and tosses the items and the main employee, off screen, indicates, "Don't worry about it." Complainant raises his eyebrows and says, "This n***a said it's free. This n***a said it's free!"
- 04:49-05:02** PO Juste shakes her head and asks, "Why are you in here and not refusing to- like, why are you still in here and not wanting to leave?" Complainant reaches toward her uniform with his left hand and a gold-colored coin between his thumb and index finger. PO Juste swats the hand away, shakes her head, and warns, "Don't. Don't do that." Complainant releases the coin and tucks his hands underneath his chin. Complainant leans forward and whispers while pointing downward with his left hand. PO Kukaj grabs him, the movement obscuring her body-worn camera. Rustling can be heard.
- 05:03-05:22** PO Kukaj presses her right fist against the tip of Complainant's sternum, pushing him back against the wall. PO Kukaj orders, "Don't get your face- don't put your face on me, because we're gonna have a big f**king problem." Complainant questions, "Who's touching who? That's crazy, n***a." PO Kukaj grabs Complainant's right forearm with both of her hands, raises his arm upward, and states, "It's okay, Sir." Complainant responds, "I know. I'm f**king posing right now."
- 05:23-05:47** PO Kukaj hums in agreement and lowers Complainant's right arm as he stares off-screen with a furrowed brow. Complainant reaches in the direction of his right arm with his left hand. PO Kukaj grabs the neckline of his shirt and twice instructs, "Don't touch my f**king hand." PO Kukaj steps back and pulls Complainant toward her by the neckline of his shirt, before releasing him. Complainant retreats into the corner as PO Juste steps between him and PO Kukaj, then shouts at him.
- PO Kukaj repeatedly waves her right hand with her ring and pinky fingers tucked toward her palm as she announces over her radio, "Can I get that additional? Let's go!" PO Juste instructs, "Don't play with me." PO Kukaj approaches Complainant, pulls on the neckline of his shirt, and reiterates, "Let's go." Respondent appears on PO Kukaj's left and approaches Complainant, who bends his right knee and partially extends his right foot in Respondent's direction. Respondent pushes against Complainant's right leg with his left hand.

- 05:48-06:07** Respondent grapples with Complainant. The police officers pull Complainant away from the wall and Respondent positions himself behind Complainant. A struggle ensues in which PO Kukaj ends up on the ground and Respondent wraps his left arm over Complainant's left shoulder and tucks his right arm underneath Complainant's right arm.
- 06:08-06:19** PO Kukaj gets back onto her feet and stands to the right of Respondent and Complainant as Respondent restrains Complainant with his hands clasped over Complainant's chest.

The following is a summary of the relevant portion of Police Officer Mella's body-worn camera recording, in evidence as Respondent's Exhibit B:

- 01:11-01:17** PO Mella enters the gift shop trailing behind Police Officer Suzenny Tipiani. Respondent has his left forearm diagonally across Complainant's chest. His left elbow is bent near the side of Complainant's neck, and his right hand is clasped over his left hand. Respondent's hands rest underneath Complainant's right underarm. Complainant leans back against Respondent as two officers, PO Juste and PO Valerie Hernandez, grip and pull Complainant's left arm. PO Kukaj stands on Complainant's right side. Complainant states, "They're- everyone's beating me up."
- 01:18-01:49** PO Mella joins PO Juste and PO Hernandez in grabbing Complainant's left arm. Complainant extends his left arm outward and asks, "Can I bring my hands together?" An unidentified police officer replies, "No, put your hands behind your back." Another unidentified police officer states, "Don't stiff up." PO Mella pulls Complainant's right arm. PO Hernandez elbows Complainant's face and twice states, "Let go," as PO Tipiani wields two pairs of handcuffs. PO Kukaj punches Complainant's head from behind.
- 01:50-02:30** Complainant leans his head forward and grunts for three seconds, as he pulls his left hand upward and away from POs Mella and Hernandez. The police officers cuff Complainant's left wrist and connect them to the second pair of handcuffs, but do not cuff his right wrist. Complainant states, "I'm not fighting you." PO Kukaj states, "Put him on the ground, guys." Complainant replies, "You can't do this. Y'all are fighting me, and I'm the problem." A struggle ensues. PO Mella pulls on the handcuffs. Complainant moves around and the clattering of merchandise can be heard.
- 02:31-02:33** Respondent unclasps his arms and releases Complainant.
- 02:34-03:06** The struggle continues. An unidentified police officer shouts, "Move my arm! My arm! You're holding my arm!" PO Mella repeatedly states, "Let

go.” PO Hernandez tases Complainant. An unidentified police officer exclaims, “Oh my God! Valerie, be careful!” Complainant leans against a table and states, “I’m not moving. I’m literally- I’m literally not moving.” PO Mella states, “Leave him like that. Let me cuff him. I’m almost there.”

03:07-04:17 Complainant reiterates that he is not moving. There are scratch marks on his left hand. PO Mella repeatedly states that he is cuffed but indicates that she still needs to “double lock” the handcuffs. Four police officers can be seen, and heard, breathing heavily as they lean over Complainant’s body. PO Mella then states, “We’re gonna need leg shackles. He’s highly resisting.” The police officers discuss strategy.

04:18-05:06 Complainant crosses his arms and tucks his hands under his chin, and the officers pull at his arms. PO Mella unholsters her taser. Police officers repeatedly issue orders to Complainant. More police officers can be seen surrounding Complainant as he lays on the floor with arms tucked near his chin and asks, “Yo, how am I the problem?” before stating, “I’m not resisting.” PO Mella responds, “Yes, you did.” Complainant tells another officer, “She said did, and I’m right here.” PO Mella exclaims, “Yo, shut the f**k up. You know what you did. You know what you did! And everything is on camera!”

05:07-05:37 Complainant shouts, “Who has a camera?” PO Mella replies, “Everybody! Right here,” and repeatedly taps her body-worn camera. Complainant asks if an officer’s camera is on and repeatedly urges them to activate their cameras. Approximately ten police officers, including PO Mella, are now around Complainant. An unidentified police officer states, “This how we gonna do it. You gon’ roll over or I’m going to f**k you up. It’s that simple.” Complainant responds, “That’s crazy. Is your camera on?” The same police officer replies in the affirmative. Complainant claims that the camera is not on.

05:38-07:50 The police officers attempt to lift Complainant. Complainant’s nose is bleeding. PO Kukaj repeatedly kicks Complainant. PO Mella turns toward the entrance, and approximately nine more police officers can be seen standing by. Complainant, still on the ground, screams as the sound of a taser can be heard. Police officers direct him to stop resisting.

07:51-10:40 PO Mella’s body-worn camera is obscured during the struggle with Complainant. As Complainant begins screaming, she backs away. An unidentified police officer near Complainant’s left side is visibly red and sweaty as he grits his teeth and pulls at Complainant; the police officer standing to his right is also red and sweaty. Complainant continues to scream. Complainant, now on his side, remains surrounded by police officers. PO Hernandez repeatedly fans her face with her right hand.

- 10:41-16:34** Police officers lift Complainant into a seated position. His forehead is bloody and he appears to be unconscious. An unidentified police officer orders, "Drag him out." Police officers pick up items which came loose, and fell to the floor during the struggle, including body-worn cameras and camera mounts. Complainant remains on the ground as PO Mella turns away to reattach items lost during the struggle to her duty belt.
- 16:34-18:44** PO Mella turns toward Complainant, who is now seated in a wheelchair. An Emergency Medical Technician stands before him. Police officers wheel Complainant out of the gift shop as the remaining police officers continue looking at items strewn across the floor, while they pick up Department equipment which had fallen from uniforms during the struggle with Complainant.

The following is a summary of the relevant portion of Respondent's body-worn camera recording, in evidence as CCRB's Exhibit 1:

- 01:04-01:22** Respondent runs into the gift shop. He joins two officers, PO Juste and PO Hernandez, in grappling with Complainant. PO Juste and PO Hernandez pull Complainant's shirt. A struggle ensues.
- 01:23-01:47** Respondent positions himself behind Complainant. The camera is largely obscured by Complainant's back. PO Kukaj appears on Respondent's right. Complainant extends his right arm, and PO Kukaj grabs it. Respondent states, "Hold him. Hold him. I got him." Respondent's right arm rests against Complainant's right pectoral muscle.
- 01:48-02:37** Respondent indicates, "All you gotta do is cooperate. That's it." Complainant retorts, "I'm not even moving." Respondent asks three times, "Are you done?" Complainant asks, "Can I bring my hands together?" A police officer replies, "No, put your hands behind your back." Another police officer states, "Don't stiff up." PO Kukaj uses both arms to pull Complainant's right arm as she grits her teeth and breathes heavily.
- 02:38-03:37** PO Kukaj removes her right arm, cocks it back, and punches Complainant in the head three times. Respondent repeatedly states, "Relax," and directs the officers to "grab his legs and drop him." Complainant states, "I'm not fighting you." PO Kukaj states, "Put him on the ground, guys." Complainant replies, "You can't do this. Y'all are fighting me, and I'm the problem." Complainant moves and Respondent follows, still standing behind him. Respondent groans.
- 03:38-03:45** Respondent punches Complainant and moves to stand at Complainant's side. PO Hernandez tases Complainant. PO Mella exclaims, "Oh my God! Valerie, be careful!"

Respondent's Testimony

Respondent testified that on February 20, 2024, he was assigned to the 49th Precinct and was on patrol with his partner, Police Officer Valerie Hernandez, who is 5'6" tall. He recalled that on that date, a "10-13" call came over central dispatch requesting assistance at St. Lucy's Church Goods Shop. Respondent explained that a "10-13" signifies that an officer is in distress and facing "possible life danger circumstances." He relayed that following the initial call, a second transmission came over from Police Officers Albulena Kukaj and Yvette Juste "screaming about where is everyone." Respondent stated that he and Police Officer Martinez rushed to the scene, went upstairs, and entered the shop (T. 44-46).

Upon entry, Respondent observed Police Officers Juste and Kukaj, two 5'0" tall police officers, engaging in a physical altercation with Complainant, who he remembered as a 6'2", 260-pound individual, in a tight, confined corner of the room as they attempted to place him under arrest. He opined that there was a "big difference" in size between the initial responding officers and Complainant. Respondent identified himself as 6'1" and 240 pounds. Respondent characterized Complainant as "combative" and noncompliant as he held his arms upwards, "tensing" them in active resistance. He recounted pulling Complainant and grabbing one of his arms to place it behind his back to no avail. According to Respondent, he then went behind Complainant and "bear-hugged" him, initially placing both of his arms around Complainant's midsection to "hold him down," prompt him to "lose his balance," and fall "to the ground" where the officers could handcuff him (T. 47-49).

Respondent testified that Complainant did not move; rather, “he stood firm” and “locked his arms.” As a result, Respondent stated that he opted to move his right arm² and place it over Complainant’s shoulder to maintain greater control. He identified this maneuver as the “seatbelt method,” a compliance tactic taught in the police academy and designed to “restrict” an individual from “moving or flailing” in a manner that could “hurt himself or other officers.” Respondent detailed placing his right arm over Complainant’s right shoulder and his left arm under Complainant’s left arm, clenching his hands together, and exerting force against Complainant’s body. He explained that his intent was to exhaust Complainant, constrain his movement, and bring him to the ground where Respondent could place his hands behind back and handcuff him (T. 49-51).

When asked whether he made contact with Complainant’s neck area, Respondent replied, “Absolutely not.” He further denied placing pressure on Complainant’s neck or hearing Complainant assert that he could not breathe or that he felt pressure on his neck. Respondent maintained that his right arm was “not under [Complainant’s] chin” or “around his neck,” but rather it was “around his shoulder, across his chest, clutching onto [Respondent’s] other arm, which is underneath his right arm.” Respondent acknowledged that Complainant’s neck was not visible in a still from Police Officer Tipiani’s body-worn camera recording, in evidence as CCRB’s Exhibit 2E. He reasoned that the low angle captured by the body-worn camera, coupled with the fact that he was wearing a puffy jacket, obscured Complainant’s neck (T. 50-52, 68-69, 72-73).

² Respondent testified that his right arm went over Complainant’s right shoulder and his left under Complainant’s left arm. The video evidence shows the reverse, with his left arm over Complainant’s shoulder and his right arm reaching underneath Complainant’s right arm (T. 50, Resp. Ex. B at 01:11-01:17).

Respondent testified that the police officers issued orders to Complainant and Complainant spoke to them but did not comply. He recalled additional police officers arriving and assisting the initial responding police officers in grabbing Complainant's arms and pulling downward. Respondent approximated "over a dozen" police officers arriving on scene. He indicated that the additional police officers employed the same tactics, but "everyone had an issue placing him in cuffs." After a "long tussle," Respondent stated that Complainant was handcuffed. In response to a question from the Tribunal, Respondent estimated that from his arrival to Complainant's arrest, the encounter spanned 25 to 30 minutes (T. 52-54, 82).

Spec. 1: Use of a Chokehold

Spec. 2: Restriction of Breathing

I find that CCRB has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent used a chokehold, in violation of Patrol Guide procedure 221-01. CCRB has also failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent restricted Complainant's breathing.

Patrol Guide procedure 221-01 defines a chokehold as "any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow" (P.G. 221-01). The Patrol Guide prohibits the use of a chokehold (P.G. 221-01, page 3, paragraph [2][b]).

I have reviewed the body-worn camera video evidence offered by CCRB (CCRB Exs. 1, 1A, 2, 2A-2G) and by Respondent (Resp. Ex. B). CCRB's Exhibit 2 shows Complainant standing between two police officers, with his back toward a pegboard wall (CCRB Ex. 2 at 0:06). Respondent is standing behind Complainant, with his left arm over Complainant's left shoulder, and his right arm underneath Complainant's right arm, with his hands clasped on Complainant's chest (*Id.*). I have also reviewed CCRB's Exhibits 2A-2G, screenshots from

Exhibit 2. While the video recording in CCRB's Exhibit 2 does not appear to depict Respondent's arm beneath Complainant's chin, the screenshots in CCRB's Exhibits 2D, 2E, 2F and 2G, taken from the video recording, do show Complainant's chin and Respondent's left arm near each other.

In CCRB's Exhibit 2D, Complainant's chin is positioned above Respondent's left arm. Because of the angle of the body-worn camera, both lower than eye level and to the left of Complainant, it is unclear whether there is any pressure on Complainant's throat.

In CCRB's Exhibit 2E, the perspective is the same as Exhibit 2D. In this photograph, Complainant's head appears to be lifted backward. This positioning could suggest that he was moving his throat away from contact with Respondent's arm; in this screenshot, however, Police Officer Kukaj's hand is on the right side of Complainant's head and appears to be pulling his hair, which could also explain why Complainant's head appears to be moving backward.

CCRB Exhibit 2F, taken from the same perspectives as Exhibits 2D and 2E, appears to be a slightly enlarged version of Exhibit 2E and adds no new relevant data.

In CCRB's Exhibit 2G, taken from a perspective just off to Complainant's right side, Police Officer Kukaj is clearly depicted holding onto Complainant's dreads with her right hand. Complainant's head appears to be immobilized. While Complainant's chin does appear to make an indentation on the sleeve of Respondent's jacket, suggesting contact and pressure, between the two body parts, I was unable to discern whether there was contact between Respondent's arm and Complainant's throat in these photographs.

Respondent's Exhibit B provides the clearest view of the position of Respondent's arms as he struggled with Complainant from behind. The video shows, consistent with Respondent's testimony, that he had one arm over Complainant's left shoulder and one arm below his right

arm. While the inside of Respondent's left arm appears to make contact with the left side of Complainant's neck, there does not appear to be either indicia of pressure upon Complainant's carotid area, or any contact with Complainant's throat, which could be characterized as a chokehold, as it is defined in Patrol Guide procedure 221-01. I, therefore, find that CCRB has failed to establish, by a preponderance of the credible relevant evidence, that Respondent used a prohibited chokehold. Similarly, I find that CCRB has failed to establish, by a preponderance of the credible relevant evidence, that Respondent restricted Complainant's breathing.

Complainant's hearsay statement, taken at face value, does not contain sufficient specificity to cause the Tribunal to reconsider these findings. When investigators asked him specific questions during his March 26, 2024, CCRB interview, which were reasonably calculated to elicit detailed responses supporting Complainant's claims, he professed either uncertainty or an inability to recall.

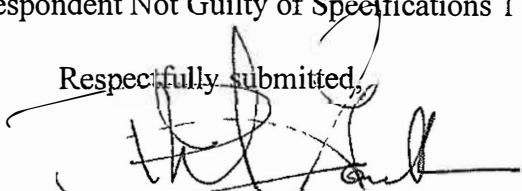
For example, when he was asked where the police officers' arms were on his body, he answered, "If I'm not mistaken, it was around my neck" and added, "It was a blur then" (CCRB Ex. 3B at 13, Ins. 16-17, 19). When asked what part of the officers' body went around his neck, Complainant answered, "his arms." When asked whether it was one or both arms, Complainant replied, "I can't recall. When asked what part of the arm was touching his neck, he replied, "I can't recall" (*Id.* at 14, Ins. 2-7). The CCRB investigator asked Complainant how long the officer (Respondent) had his arms around Complainant's neck and whether he put any pressure on it; Complainant replied, "I can't recall" (*Id.* at 14, Ins. 14-20). When Complainant was asked whether he had any difficulty breathing due to Respondent having his arm around his neck, he recalled "it being hard to breathe" but qualified his answer by adding that he was not standing for "very long" (*Id.* at 14, Ins. 21-25). He was then asked whether he had difficulty breathing after

Respondent removed his arm from Complainant's neck; he replied, "Yes, ma'am . . . It was the constant violent blows being dealt to me while I was on the ground" (*Id.* at 15, lns. 11-19).

I also note that Complainant's demeanor during the encounter, as captured on body-worn camera video, raises serious questions regarding his mental state at the time. His responses to objectively simple questions from Police Officers Kukaj and Juste appear illogical and nonresponsive. I note that he did admit to drinking a cocktail before coming to the gift shop but there is insufficient evidence from which to infer that he was intoxicated. I do, however, find that the police officers, as well as the gift shop employees, appeared confounded by Complainant's statements.

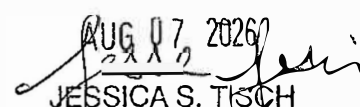
For the reasons set forth above, I find Respondent Not Guilty of Specifications 1 and 2.

Respectfully submitted,


Paul M. Gamble, Sr.

Assistant Deputy Commissioner Trials

APPROVED


AUG 07 2026
JESSICA S. TISCH
POLICE COMMISSIONER